

HOUSE No. 2563

The Commonwealth of Massachusetts

PRESENTED BY:

Bud L. Williams

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing the dentist and dental hygienist compact.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>1/14/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/11/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/11/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/24/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/17/2025</i>
<i>Marc T. Lombardo</i>	<i>22nd Middlesex</i>	<i>4/17/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>12/3/2025</i>

HOUSE No. 2563

By Representative Williams of Springfield, a petition (accompanied by bill, House, No. 2563) of Bud L. Williams and others for legislation to establish a dentist and dental hygienist compact. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing the dentist and dental hygienist compact.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws are hereby amended by inserting after chapter 112A the following
2 chapter:-

3 Chapter 112B. Dentist and Dental Hygienist Compact

4 Section 1. This chapter shall be known and cited as the Dentist and Dental Hygienist
5 Compact. The purposes of this compact are to facilitate the interstate practice of dentistry and
6 dental hygiene and improve public access to dentistry and dental hygiene services by providing
7 dentists and dental hygienists licensed in a participating state the ability to practice in
8 participating states in which they are not licensed. The compact does this by establishing a
9 pathway for dentists and dental hygienists licensed in a participating state to obtain a compact
10 privilege that authorizes them to practice in another participating state in which they are not
11 licensed. The compact enables participating states to protect the public health and safety with

respect to the practice of such dentists and dental hygienists, through the state's authority to regulate the practice of dentistry and dental hygiene in the state. The compact:

(i) enables dentists and dental hygienists who qualify for a compact privilege to practice in other participating states without satisfying burdensome and duplicative requirements associated with securing a license to practice in those states;

(ii) promotes mobility and addresses workforce shortages through each participating state's acceptance of a compact privilege to practice in that state;

(iii) increases public access to qualified, licensed dentists and dental hygienists by creating a responsible, streamlined pathway for licensees to practice in participating states.

(iv) enhances the ability of participating states to protect the public's health and safety;

(v) does not interfere with licensure requirements established by a participating state;

(vi) facilitates the sharing of licensure and disciplinary information among participating states;

(vii) requires dentists and dental hygienists who practice in a participating state pursuant to a compact privilege to practice within the scope of practice authorized in that state;

(viii) extends the authority of a participating state to regulate the practice of dentistry and dental hygiene within its borders to dentists and dental hygienists who practice in the state through a compact privilege;

(ix) promotes the cooperation of participating state in regulating the practice of dentistry and dental hygiene within those states;

(x) facilitates the relocation of military members and their spouses who are licensed to practice dentistry or dental hygiene;

Section 2. As used in this chapter, unless the context requires otherwise, the following words shall have the following meanings:

“Active Military Member”, any person with full-time duty status in the armed forces of the United States, including members of the National Guard and Reserve.

“Adverse Action”, disciplinary action or encumbrance imposed on a license or compact privilege by a state licensing authority.

“Alternative Program”, a non-disciplinary monitoring or practice remediation process applicable to a dentist or dental hygienist approved by a state licensing authority of a participating state in which the dentist or dental hygienist is licensed, including, but not limited to, programs to which licensees with substance abuse or addiction issues are referred in lieu of adverse action.

“Clinical Assessment”, an examination or process, required for licensure as a dentist or dental hygienist, as applicable, that provides evidence of clinical competence in dentistry or dental hygiene.

“Commissioner”, the individual appointed by a participating state to serve as the member of the commission for that participating state.

“Compact”, this chapter, implementing the Dentist and Dental Hygienist Compact in the commonwealth.

52 “Compact Privilege”, the authorization granted by a remote state to allow a licensee from
53 a participating state to practice as a dentist or dental hygienist in a remote state.

54 “Continuing Professional Development”, a requirement as a condition of license renewal
55 to provide evidence of successful participation in educational or professional activities relevant
56 to practice or area of work.

57 “Criminal Background Check”, the submission of fingerprints or other biometric-based
58 information for a license applicant for the purpose of obtaining that applicant’s criminal history
59 record information, as defined in 28 C.F.R. § 20.3(d) from the Federal Bureau of Investigation
60 and the State’s criminal history record repository as defined in 28 C.F.R. § 20.3(f).

61 “Data System”, the Commission’s repository of information about licensees, including,
62 but not limited to, examination, licensure, investigative, compact privilege, adverse action, and
63 alternative program.

64 “Dental Hygienist”, an individual who is licensed by a state licensing authority to
65 practice dental hygiene.

66 “Dentist”, an individual who is licensed by a state licensing authority to practice
67 dentistry.

68 “Dentist and Dental Hygienist Compact Commission” or “Commission”, a joint
69 government agency established by this compact comprised of each state that has enacted the
70 compact and a national administrative body comprised of a commissioner from each state that
71 has enacted the compact.

“Encumbered License”, a license that a state licensing authority has limited in any way other than through an alternative program.

“Executive Board”, the Chair, Vice Chair, Secretary and Treasurer and any other commissioners as may be determined by commission rule or bylaw.

“Jurisprudence Requirement”, the assessment of an individual’s knowledge of the laws and rules governing the practice of dentistry or dental hygiene, as applicable, in a state.

“License”, current authorization by a state, other than authorization pursuant to a compact privilege, or other privilege, for an individual to practice as a dentist or dental hygienist in that state.

“Licensee”, an individual who holds an unrestricted license from a participating state to practice as a dentist or dental hygienist in that state.

“Model Compact”, the model for the Dentist and Dental Hygienist Compact on file with the Council of State Governments or other entity as designated by the commission.

“Participating State”, the commonwealth and any other state that has enacted the compact and been admitted to the commission in accordance with this chapter and commission rules.

“Qualifying License”, a license that is not an encumbered license issued by a participating state to practice dentistry or dental hygiene.

“Remote State”, a participating state where a licensee who is not licensed as a dentist or dental hygienist is exercising or seeking to exercise the compact privilege.

“Rule”, a regulation promulgated by an entity that has the force of law.

“Scope of Practice”, the procedures, actions, and processes a dentist or dental hygienist licensed in a state is permitted to undertake in that state and the circumstances under which the licensee is permitted to undertake those procedures, actions and processes. Such procedures, actions and processes and the circumstances under which they may be undertaken may be established through means, including, but not limited to, statute, regulations, case law, and other processes available to the state licensing authority or other government agency.

“Significant Investigative Information”, information, records, and documents received or generated by a state licensing authority pursuant to an investigation for which a determination has been made that there is probable cause to believe that the licensee has violated a statute or regulation that is considered more than a minor infraction for which the state licensing authority could pursue adverse action against the licensee.

“State”, any state, commonwealth, district, or territory of the United States of America that regulates the practices of dentistry and dental hygiene.

“State Licensing Authority,” an agency or other entity of a state that is responsible for the licensing and regulation of dentists or dental hygienists.

Section 3. (a) In order to join the compact and thereafter continue as a participating state, a state shall:

(1) enact a compact that is not materially different from the model compact as determined in accordance with commission rules;

(2) participate fully in the commission’s data system;

- 112 (3) have a mechanism in place for receiving and investigating complaints about its
113 licensees and license applicants;
- 114 (4) notify the commission, in compliance with the terms of the compact and commission
115 rules, of any adverse action or the availability of significant investigative information regarding a
116 licensee and license applicant;
- 117 (5) fully implement a criminal background check requirement, within a time frame
118 established by commission rule, by receiving the results of a qualifying criminal background
119 check;
- 120 (6) comply with the commission rules applicable to a participating state;
- 121 (7) accept the National Board Examinations of the Joint Commission on National Dental
122 Examinations or another examination accepted by commission rule as a licensure examination;
- 123 (8) accept for licensure that applicants for a dentist license graduate from a predoctoral
124 dental education program accredited by the Commission on Dental Accreditation, or another
125 accrediting agency recognized by the United States Department of Education for the
126 accreditation of dentistry and dental hygiene education programs, leading to the Doctor of Dental
127 Surgery (D.D.S.) or Doctor of Dental Medicine (D.M.D.) degree;
- 128 (9) accept for licensure that applicants for a dental hygienist license graduate from a
129 dental hygiene education program accredited by the Commission on Dental Accreditation or
130 another accrediting agency recognized by the United States Department of Education for the
131 accreditation of dentistry and dental hygiene education programs;
- 132 (10) require for licensure that applicants successfully complete a clinical assessment;

133 (11) have continuing professional development requirements as a condition for license
134 renewal; and

135 (12) pay a participation fee to the commission as established by commission rule.

136 (b) Providing alternative pathways for an individual to obtain an unrestricted license shall
137 not disqualify a state from participating in the compact.

138 (c) When conducting a criminal background check the state licensing authority shall:

139 (1) consider that information in making a licensure decision;

140 (2) maintain documentation of completion of the criminal background check and
141 background check information to the extent allowed by state and federal law; and

142 (3) report to the commission whether it has completed the criminal background check and
143 whether the individual was granted or denied a license

144 (d) A licensee of a participating state who has a qualifying license in that state and does
145 not hold an encumbered license in any other participating state shall be issued a compact
146 privilege in a remote state in accordance with the terms of the compact and commission rules. If
147 a remote state has a jurisprudence requirement a compact privilege will not be issued to the
148 licensee unless the licensee has satisfied the jurisprudence requirement.

149 Section 4. (a) To obtain and exercise the compact privilege under the terms and
150 provisions of the compact, the licensee shall:

151 (1) have a qualifying license as a dentist or dental hygienist in a participating state;

152 (2) be eligible for a compact privilege in any remote State in accordance with paragraphs
153 (d), (g) and (h);

154 (3) submit to an application process whenever the licensee is seeking a compact
155 privilege;

156 (4) pay any applicable commission and remote state fees for a compact privilege in the
157 remote state;

158 (5) meet any jurisprudence requirement established by a remote state in which the
159 licensee is seeking a compact privilege;

160 (6) have passed a National Board Examination of the Joint Commission on National
161 Dental Examinations or another examination accepted by commission rule;

162 (7) for a dentist, have graduated from a predoctoral dental education program accredited
163 by the Commission on Dental Accreditation, or another accrediting agency recognized by the
164 United States Department of Education for the accreditation of dentistry and dental hygiene
165 education programs, leading to the Doctor of Dental Surgery (D.D.S.) or Doctor of Dental
166 Medicine (D.M.D.) degree;

167 (8) for a dental hygienist, have graduated from a dental hygiene education program
168 accredited by the Commission on Dental Accreditation or another accrediting agency recognized
169 by the United States Department of Education for the accreditation of dentistry and dental
170 hygiene education programs;

171 (9) have successfully completed a clinical assessment for licensure;

(10) report to the commission adverse action taken by any non-participating state when applying for a compact privilege and, otherwise, within 30 days from the date the adverse action is taken;

(11) report to the commission when applying for a compact privilege the address of the licensee's primary residence and thereafter immediately report to the commission any change in the address of the licensee's primary residence; and

(12) consent to accept service of process by mail at the licensee's primary residence on record with the commission with respect to any action brought against the licensee by the commission or a participating state, and consent to accept service of a subpoena by mail at the licensee's primary residence on record with the commission with respect to any action brought or investigation conducted by the commission or a participating state.

(b) The licensee must comply with the requirements of subsection (a) to maintain the compact privilege in the remote state. If those requirements are met, the compact privilege will continue as long as the licensee maintains a qualifying license in the state through which the licensee applied for the compact privilege and pays any applicable compact privilege renewal fees.

(c) A licensee providing dentistry or dental hygiene in a remote state under the compact privilege shall function within the scope of practice authorized by the remote state for a dentist or dental hygienist licensed in that state.

(d) A licensee providing dentistry or dental hygiene pursuant to a compact privilege in a remote state is subject to that state's regulatory authority. A remote state may, in accordance with due process and that state's laws, by adverse action revoke or remove a licensee's compact

194 privilege in the remote state for a specific period of time and impose fines or take any other
195 necessary actions to protect the health and safety of its citizens. If a remote state imposes an
196 adverse action against a compact privilege that limits the compact privilege, that adverse action
197 applies to all compact privileges in all remote states. A licensee whose compact privilege in a
198 remote state is removed for a specified period of time is not eligible for a compact privilege in
199 any other remote state until the specific time for removal of the compact privilege has passed and
200 all encumbrance requirements are satisfied.

201 (e) If a license in a participating state is an encumbered license, the licensee shall lose the
202 compact privilege in a remote state and shall not be eligible for a compact privilege in any
203 remote state until the license is no longer encumbered.

204 (f) Once an encumbered license in a participating state is restored to good standing, the
205 licensee must meet the requirements of subsection (a) to obtain a compact privilege in a remote
206 state.

207 (g) If a licensee's compact privilege in a remote state is removed by the remote state, the
208 individual shall lose or be ineligible for the compact privilege in any remote state until the
209 following occur:

210 (1) the specific period of time for which the compact privilege was removed has ended;

211 and

212 (2) all conditions for removal of the compact privilege have been satisfied.

213 (h) Once the requirements of subsection (g) have been met, the licensee must meet the
214 requirements in subsection (a) to obtain a compact privilege in a remote state.

Section 5. An active military member and their spouse shall not be required to pay to the commission for a compact privilege the fee otherwise charged by the commission. If a remote state chooses to charge a fee for a compact privilege, it may choose to charge a reduced fee or no fee to an active military member and their spouse for a compact privilege.

Section 6. (a) A participating state in which a licensee is licensed shall have exclusive authority to impose adverse action against the qualifying license issued by that participating state.

(b) A participating state may take adverse action based on the significant investigative information of a remote state, so long as the participating state follows its own procedures for imposing adverse action.

(c) Nothing in this compact shall override a participating state's decision that participation in an alternative program may be used in lieu of adverse action and that such participation shall remain non-public if required by the participating state's laws. Participating states must require licensees who enter any alternative program in lieu of discipline to agree not to practice pursuant to a compact privilege in any other participating state during the term of the alternative program without prior authorization from such other participating state.

(d) Any participating state in which a licensee is applying to practice or is practicing pursuant to a compact privilege may investigate actual or alleged violations of the statutes and regulations authorizing the practice of dentistry or dental hygiene in any other participating state in which the dentist or dental hygienist holds a license or compact privilege.

(e) A remote state shall have the authority to:

(1) take adverse actions under subsection (d) of section 4 against a licensee's compact privilege in the state;

(2) in furtherance of its rights and responsibilities under the compact and the commission's rules issue subpoenas for both hearings and investigations that require the attendance and testimony of witnesses, and the production of evidence. Subpoenas issued by a state licensing authority in a participating state for the attendance and testimony of witnesses, or the production of evidence from another participating state, shall be enforced in the latter state by any court of competent jurisdiction, according to the practice and procedure of that court applicable to subpoenas issued in proceedings pending before it. The issuing authority shall pay any witness fees, travel expenses, mileage, and other fees required by the service statutes of the state where the witnesses or evidence are located; and

(3) if otherwise permitted by state law, recover from the licensee the costs of investigations and disposition of cases resulting from any adverse action taken against that licensee.

(f)(1) In addition to the authority granted to a participating state by its dentist or dental hygienist licensure act or other applicable state law, a participating state may jointly investigate licensees with other participating states.

(2) Participating states shall share any significant investigative information, litigation, or compliance materials in furtherance of any joint or individual investigation initiated under the compact.

(g) (1) After a licensee's compact privilege in a remote state is terminated, the remote state may continue an investigation of the licensee that began when the licensee had a compact privilege in that remote state.

(2) If the investigation yields what would be significant investigative information had the licensee continued to have a compact privilege in that remote state, the remote state shall report the presence of such information to the data system as required by paragraph (6) of subsection (b) of section 8 as if it was significant investigative information.

Section 7. (a) The compact participating states hereby create and establish a joint government agency whose membership consists of all participating states that have enacted the compact. The commission is an instrumentality of the participating states acting jointly and not an instrumentality of any one state. The commission shall come into existence on or after the effective date of the compact as set forth in subsection (a) of section 11.

(b) (1) Each participating state shall have and be limited to 1 commissioner selected by that participating state's state licensing authority or, if the state has more than 1 state licensing authority, selected collectively by the state licensing authorities.

(2) The commissioner shall be a member or designee of such authority or authorities.

(3) The commission may by rule or bylaw establish a term of office for commissioners and may by rule or bylaw establish term limits.

(4) The commission may recommend to a state licensing authority or authorities, as applicable, removal or suspension of an individual as the state's commissioner.

276 (5) A participating state's state licensing authority, or authorities, as applicable, shall fill
277 any vacancy of its commissioner on the commission within 60 days of the vacancy.

278 (6) Each commissioner shall be entitled to 1 vote on all matters that are voted upon by the
279 commission.

280 (7) The commission shall meet at least once during each calendar year. Additional
281 meetings may be held as set forth in the bylaws. The commission may meet by
282 telecommunication, video conference or other similar electronic means.

283 (c) The commission shall have the following powers:

284 (1) establish the fiscal year of the commission;

285 (2) establish a code of conduct and conflict of interest policies;

286 (3) adopt rules and bylaws;

287 (4) maintain its financial records in accordance with the bylaws;

288 (5) meet and take such actions as are consistent with the provisions of this compact, the
289 commission's rules, and the bylaws;

290 (6) initiate and conclude legal proceedings or actions in the name of the commission;
291 provided, that the standing of any state licensing authority to sue or be sued under applicable law
292 shall not be affected;

293 (7) maintain and certify records and information provided to a participating state as the
294 authenticated business records of the commission, and designate a person to do so on the
295 commission's behalf;

296 (8) purchase and maintain insurance and bonds;

297 (9) borrow, accept, or contract for services of personnel, including, but not limited to,
298 employees of a participating state;

299 (10) conduct an annual financial review;

300 (11) hire employees, elect or appoint officers, fix compensation, define duties, grant such
301 individuals appropriate authority to carry out the purposes of the compact, and establish the
302 commission's personnel policies and programs relating to conflicts of interest, qualifications of
303 personnel, and other related personnel matters;

304 (12) as set forth in the commission rules, charge a fee to a licensee for the grant of a
305 compact privilege in a remote state and thereafter, as may be established by commission rule,
306 charge the licensee a compact privilege renewal fee for each renewal period in which that
307 licensee exercises or intends to exercise the compact privilege in that remote state. Nothing
308 herein shall be construed to prevent a remote state from charging a licensee a fee for a compact
309 privilege or renewals of a compact privilege, or a fee for the jurisprudence requirement if the
310 remote state imposes such a requirement for the grant of a compact privilege;

311

312 (13) accept any and all appropriate gifts, donations, grants of money, other sources of
313 revenue, equipment, supplies, materials, and services, and receive, utilize, and dispose of the
314 same; provided that at all times the commission shall avoid any appearance of impropriety or
315 conflict of interest;

316 (14) lease, purchase, retain, own, hold, improve, or use any property, real, personal, or
317 mixed, or any undivided interest therein;

318 (15) sell, convey, mortgage, pledge, lease, exchange, abandon, or otherwise dispose of
319 any property real, personal, or mixed;

320 (16) establish a budget and make expenditures;

321 (17) borrow money;

322 (18) appoint committees, including standing committees, which may be composed of
323 members, state regulators, state legislators or their representatives, and consumer representatives,
324 and such other interested persons as may be designated in this compact and the bylaws;

325 (19) provide and receive information from, and cooperate with, law enforcement
326 agencies;

327 (20) elect a chair, vice chair, secretary and treasurer and such other officers of the
328 commission as provided in the commission's bylaws;

329 (21) establish and elect an executive board;

330 (22) adopt and provide to the participating states an annual report;

331 (23) determine whether a state's enacted compact is materially different from the model
332 compact language such that the state would not qualify for participation in the compact; and

333 (24) perform such other functions as may be necessary or appropriate to achieve the
334 purposes of this compact.

(d) (1) All meetings of the commission that are not closed pursuant to this subsection shall be open to the public. Notice of public meetings shall be posted on the commission's website at least 30 days prior to the public meeting.

(2) Notwithstanding paragraph 1 of subsection (d), the commission may convene an emergency public meeting by providing at least 24 hours prior notice on the commission's website, and any other means as provided in the commission's rules, for any of the reasons it may dispense with notice of proposed rulemaking under section 9. The commission's legal counsel shall certify that 1 of the reasons justifying an emergency public meeting has been met.

(3) Notice of all commission meetings shall provide the time, date, and location of the meeting, and if the meeting is to be held or accessible via telecommunication, video conference, or other electronic means, the notice shall include the mechanism for access to the meeting through such means.

(4) The commission may convene in a closed, non-public meeting for the commission to receive legal advice or to discuss:

(i) non-compliance of a participating state with its obligations under the compact;

(ii) the employment, compensation, discipline or other matters, practices or procedures related to specific employees or other matters related to the commission's internal personnel practices and procedures;

(iii) current or threatened discipline of a licensee or compact privilege holder by the commission or by a participating state's licensing authority;

(iv) current, threatened, or reasonably anticipated litigation;

356 (v) negotiation of contracts for the purchase, lease, or sale of goods, services, or real
357 estate;

358 (vi) accusing any person of a crime or formally censuring any person;

359 (vii) trade secrets or commercial or financial information that is privileged or
360 confidential;

361 (viii) information of a personal nature where disclosure would constitute a clearly
362 unwarranted invasion of personal privacy;

363 (ix) investigative records compiled for law enforcement purposes;

364 (x) information related to any investigative reports prepared by or on behalf of or for use
365 of the commission or other committee charged with responsibility of investigation or
366 determination of compliance issues pursuant to the compact;

367 (xi) legal advice;

368 (xii) matters specifically exempted from disclosure to the public by federal or
369 participating state law; and

370 (xiii) other matters as promulgated by the commission by rule.

371 (5) If a meeting, or portion of a meeting, is closed, the presiding officer shall state that the
372 meeting will be closed and reference each relevant exempting provision, and such reference shall
373 be recorded in the minutes.

374 (6) The commission shall keep minutes that fully and clearly describe all matters
375 discussed in a meeting and shall provide a full and accurate summary of actions taken, and the

reasons therefore, including a description of the views expressed. All documents considered in connection with an action shall be identified in such minutes. All minutes and documents of a closed meeting shall remain under seal, subject to release only by a majority vote of the commission or order of a court of competent jurisdiction.

(e) (1) The commission shall pay, or provide for the payment of, the reasonable expenses of its establishment, organization, and ongoing activities.

(2) The commission may accept any and all appropriate sources of revenue, donations, and grants of money, equipment, supplies, materials, and services.

(3) The commission may levy on and collect an annual assessment from each participating state and impose fees on licensees of participating states when a compact privilege is granted to cover the cost of the operations and activities of the commission and its staff, which must be in a total amount sufficient to cover its annual budget as approved each fiscal year for which sufficient revenue is not provided by other sources. The aggregate annual assessment amount for participating states shall be allocated based upon a formula that the commission shall promulgate by rule.

(4) The commission shall not incur obligations of any kind prior to securing the funds adequate to meet the same; nor shall the commission pledge the credit of any participating state, except by and with the authority of the participating state.

(5) The commission shall keep accurate accounts of all receipts and disbursements. The receipts and disbursements of the commission shall be subject to the financial review and accounting procedures established under its bylaws. All receipts and disbursements of funds handled by the commission shall be subject to an annual financial review by a certified or

398 licensed public accountant, and the report of the financial review shall be included in and
399 become part of the annual report of the commission.

400 (f) (1) The executive board shall have the power to act on behalf of the commission
401 according to the terms of this compact. The powers, duties, and responsibilities of the executive
402 board shall include:

403 (i) overseeing the day-to-day activities of the administration of the compact including
404 compliance with the provisions of the compact, the commission's rules and bylaws;

405 (ii) recommending to the commission changes to the rules or bylaws, changes to this
406 compact legislation, fees charged to compact participating states, fees charged to licensees, and
407 other fees;

408 (iii) ensuring compact administration services are appropriately provided, including by
409 contract;

410 (iv) preparing and recommending the budget;

411 (v) maintaining financial records on behalf of the commission;

412 (vi) monitoring compact compliance of participating states and providing compliance
413 reports to the commission;

414 (vii) establishing additional committees as necessary;

415 (viii) exercising the powers and duties of the commission during the interim between
416 commission meetings, except for adopting or amending rules, adopting or amending bylaws, and

417 exercising any other powers and duties expressly reserved to the commission by rule or bylaw;
418 and

419 (ix) other duties as provided in the rules or bylaws of the commission.

420 (2) The executive board shall be composed of up to 7 members:

421 (i) The chair, vice chair, secretary and treasurer of the commission and any other members
422 of the commission who serve on the executive board shall be voting members of the executive
423 board;

424 (ii) Other than the chair, vice chair, secretary, and treasurer, the commission may elect up
425 to 3 voting members from the current membership of the commission.

426 (3) The commission may remove any member of the executive board as provided in the
427 commission's bylaws.

428 (4) The executive board shall meet at least annually.

429 (i) An executive board meeting at which it takes or intends to take formal action on a
430 matter shall be open to the public, except that the executive board may meet in a closed, non-
431 public session of a public meeting when dealing with any of the matters covered under paragraph
432 (4) of subsection (d).

433 (ii) The executive board shall give 5 business days' notice of its public meetings, posted
434 on its website and as it may otherwise determine to provide notice to persons with an interest in
435 the public matters the executive board intends to address at those meetings.

5. The executive board may hold an emergency meeting when acting for the commission to:

(i) meet an imminent threat to public health, safety, or welfare;

(ii) prevent a loss of commission or participating state funds; or

(iii) protect public health and safety.

(g) (1) The members, officers, executive director, employees and representatives of the commission shall be immune from suit and liability, both personally and in their official capacity, for any claim for damage to or loss of property or personal injury or other civil liability caused by or arising out of any actual or alleged act, error, or omission that occurred, or that the person against whom the claim is made had a reasonable basis for believing occurred within the scope of commission employment, duties or responsibilities; provided that nothing in this paragraph shall be construed to protect any such person from suit or liability for any damage, loss, injury, or liability caused by the intentional or willful or wanton misconduct of that person. The procurement of insurance of any type by the commission shall not in any way compromise or limit the immunity granted hereunder.

(2) The commission shall defend any member, officer, executive director, employee, and representative of the commission in any civil action seeking to impose liability arising out of any actual or alleged act, error, or omission that occurred within the scope of commission employment, duties, or responsibilities, or as determined by the commission that the person against whom the claim is made had a reasonable basis for believing occurred within the scope of commission employment, duties, or responsibilities; provided that nothing herein shall be construed to prohibit that person from retaining their own counsel at their own expense; and

provided further, that the actual or alleged act, error, or omission did not result from that person's intentional or willful or wanton misconduct.

(3) Notwithstanding paragraph (1), should any member, officer, executive director, employee, or representative of the commission be held liable for the amount of any settlement or judgment arising out of any actual or alleged act, error, or omission that occurred within the scope of that individual's employment, duties, or responsibilities for the commission, or that the person to whom that individual is liable had a reasonable basis for believing occurred within the scope of the individual's employment, duties, or responsibilities for the commission, the commission shall indemnify and hold harmless such individual, provided that the actual or alleged act, error, or omission did not result from the intentional or willful or wanton misconduct of the individual.

(4) Nothing herein shall be construed as a limitation on the liability of any licensee for professional malpractice or misconduct, which shall be governed solely by any other applicable state laws.

(5) Nothing in this compact shall be interpreted to waive or otherwise abrogate a participating state's state action immunity or state action affirmative defense with respect to antitrust claims under the Sherman Act, Clayton Act, or any other state or federal antitrust or anticompetitive law or regulation.

(6) Nothing in this compact shall be construed to be a waiver of sovereign immunity by the participating states or by the commission.

Section 8. (a) The commission shall provide for the development, maintenance, operation, and utilization of a coordinated database and reporting system containing licensure,

adverse action, and the presence of significant investigative information on all licensees and applicants for a license in participating states.

(b) Notwithstanding any other provision of state law to the contrary, a participating state shall submit a uniform data set to the data system on all individuals to whom this compact is applicable as required by the rules of the commission, including:

(1) identifying information;

(2) licensure data;

(3) adverse actions against a licensee, license applicant or compact privilege and information related thereto;

(4) non-confidential information related to alternative program participation, the beginning and ending dates of such participation, and other information related to such participation;

(5) any denial of an application for licensure, and the reason or reasons for such denial, excluding the reporting of any criminal history record information where prohibited by law;

(6) the presence of significant investigative information; and

(7) other information that may facilitate the administration of this compact or the protection of the public, as determined by the rules of the commission.

(c) the records and information provided to a participating state pursuant to this compact or through the data system, when certified by the commission or an agent thereof, shall constitute the authenticated business records of the commission, and shall be entitled to any associated

500 hearsay exception in any relevant judicial, quasi-judicial or administrative proceedings in a
501 participating state.

502 (d) Significant investigative information pertaining to a licensee in any participating state
503 will only be available to other participating states.

504 (e) It shall be the responsibility of the participating states to monitor the database to
505 determine whether adverse action has been taken against a licensee or license applicant. Adverse
506 action information pertaining to a licensee or license applicant in any participating state will be
507 available to any other participating state.

508 (f) Participating states contributing information to the data system may designate
509 information that may not be shared with the public without the express permission of the
510 contributing state.

511 (g) Any information submitted to the data system that is subsequently expunged pursuant
512 to federal law or the laws of the participating state contributing the information shall be removed
513 from the data system.

514 Section 9. (a) The commission shall promulgate reasonable rules in order to effectively
515 and efficiently implement and administer the purposes and provisions of the compact. A
516 commission rule shall be invalid and have no force or effect only if a court of competent
517 jurisdiction holds that the rule is invalid because the commission exercised its rulemaking
518 authority in a manner that is beyond the scope and purposes of the compact, or the powers
519 granted hereunder, or based upon another applicable standard of review.

(b) The rules of the commission shall have the force of law in each participating state, provided however that where the rules of the commission conflict with the laws of the participating state that establish the participating state's scope of practice as held by a court of competent jurisdiction, the rules of the commission shall be ineffective in that state to the extent of the conflict.

(c) The commission shall exercise its rulemaking powers pursuant to the criteria in this section and the rules adopted thereunder. Rules shall become binding as of the date specified by the commission for each rule.

(d) If a majority of the legislatures of the participating states rejects a commission rule or portion of a commission rule, by enactment of a statute or resolution in the same manner used to adopt the compact, within 4 years of the date of adoption of the rule, then such rule shall have no further force and effect in any participating state or to any state applying to participate in the compact.

(e) Rules shall be adopted at a regular or special meeting of the commission.

(f) Prior to adoption of a proposed rule, the commission shall hold a public hearing and allow persons to provide oral and written comments, data, facts, opinions, and arguments.

(g) Prior to adoption of a proposed rule by the commission, and at least 30 days in advance of the meeting at which the commission will hold a public hearing on the proposed rule, the commission shall provide a notice of proposed rulemaking:

(1) on the website of the commission or other publicly accessible platform;

540 (2) to persons who have requested notice of the commission's notices of proposed
541 rulemaking, and

542 (3) in such other ways as the commission may by rule specify.

543 (h) The notice of proposed rulemaking shall include:

544 (1) the time, date, and location of the public hearing at which the commission will hear
545 public comments on the proposed rule and, if different, the time, date, and location of the
546 meeting where the commission will consider and vote on the proposed rule;

547 (2) if the hearing is held via telecommunication, video conference, or other electronic
548 means, the commission shall include the mechanism for access to the hearing in the notice of
549 proposed rulemaking;

550 (3) the text of the proposed rule and the reason therefor;

551 (4) a request for comments on the proposed rule from any interested person; and

552 (5) the manner in which interested persons may submit written comments.

553 (i) All hearings shall be recorded. A copy of the recording and all written comments and
554 documents received by the commission in response to the proposed rule shall be available to the
555 public.

556 (j) Nothing in this section shall be construed as requiring a separate hearing on each
557 commission rule. Rules may be grouped for the convenience of the commission at hearings
558 required by this section.

(k) The commission shall, by majority vote of all commissioners, take final action on the proposed rule based on the rulemaking record.

(1) The commission may adopt changes to the proposed rule provided the changes do not enlarge the original purpose of the proposed rule.

(2) The commission shall provide an explanation of the reasons for substantive changes made to the proposed rule as well as reasons for substantive changes not made that were recommended by commenters.

(3) The commission shall determine a reasonable effective date for the rule. Except for an emergency as provided in subsection (l), the effective date of the rule shall be no sooner than 30 days after the commission issuing the notice that it adopted or amended the rule.

(l) Upon determination that an emergency exists, the commission may consider and adopt an emergency rule with 24 hours' notice, with opportunity to comment, provided that the usual rulemaking procedures provided in the compact and in this section shall be retroactively applied to the rule as soon as reasonably possible, in no event later than 90 days after the effective date of the rule. For the purposes of this provision, an emergency rule is one that must be adopted immediately in order to:

(1) meet an imminent threat to public health, safety, or welfare;

(2) prevent a loss of commission or participating state funds;

(3) meet a deadline for the promulgation of a rule that is established by federal law or rule; or

(4) protect public health and safety.

(m) The commission or an authorized committee of the commission may direct revisions to a previously adopted rule for purposes of correcting typographical errors, errors in format, errors in consistency, or grammatical errors. Public notice of any revisions shall be posted on the website of the commission. The revision shall be subject to challenge by any person for a period of 30 days after posting. The revision may be challenged only on grounds that the revision results in a material change to a rule. A challenge shall be made in writing and delivered to the commission prior to the end of the notice period. If no challenge is made, the revision will take effect without further action. If the revision is challenged, the revision may not take effect without the approval of the commission.

(n) No participating state's rulemaking requirements shall apply under this compact.

Section 10. (a) (1) The executive and judicial branches of state government in each participating state shall enforce this compact and take all actions necessary and appropriate to implement the compact.

(2) Venue is proper and judicial proceedings by or against the commission shall be brought solely and exclusively in a court of competent jurisdiction where the principal office of the commission is located. The commission may waive venue and jurisdictional defenses to the extent it adopts or consents to participate in alternative dispute resolution proceedings. Nothing herein shall affect or limit the selection or propriety of venue in any action against a licensee for professional malpractice, misconduct or any such similar matter.

(3) The commission shall be entitled to receive service of process in any proceeding regarding the enforcement or interpretation of the compact or commission rule and shall have standing to intervene in such a proceeding for all purposes. Failure to provide the commission

602 service of process shall render a judgment or order void as to the commission, this compact, or
603 promulgated rules.

604 (b) (1) If the commission determines that a participating state has defaulted in the
605 performance of its obligations or responsibilities under this compact or the promulgated rules,
606 the commission shall provide written notice to the defaulting state. The notice of default shall
607 describe the default, the proposed means of curing the default, and any other action that the
608 commission may take, and shall offer training and specific technical assistance regarding the
609 default.

610 (2) The commission shall provide a copy of the notice of default to the other participating
611 states.

612 (c) If a state in default fails to cure the default, the defaulting state may be terminated
613 from the compact upon an affirmative vote of a majority of the commissioners, and all rights,
614 privileges and benefits conferred on that state by this compact may be terminated on the effective
615 date of termination. A cure of the default does not relieve the offending state of obligations or
616 liabilities incurred during the period of default.

617 (d) Termination of participation in the compact shall be imposed only after all other
618 means of securing compliance have been exhausted. Notice of intent to suspend or terminate
619 shall be given by the commission to the governor, the majority and minority leaders of the
620 defaulting state's legislature, the defaulting state's state licensing authority or authorities, as
621 applicable, and each of the participating states' state licensing authority or authorities, as
622 applicable.

(e) A state that has been terminated is responsible for all assessments, obligations, and liabilities incurred through the effective date of termination, including obligations that extend beyond the effective date of termination.

(f) Upon the termination of a state's participation in this compact, that state shall immediately provide notice to all licensees of the state, including licensees of other participating states issued a compact privilege to practice within that state, of such termination. The terminated state shall continue to recognize all compact privileges then in effect in that state for a minimum of 180 days after the date of said notice of termination.

(g) The commission shall not bear any costs related to a state that is found to be in default or that has been terminated from the compact, unless agreed upon in writing between the commission and the defaulting state.

(h) The defaulting state may appeal the action of the commission by petitioning the U.S. District Court for the District of Columbia or the federal district where the commission has its principal offices. The prevailing party shall be awarded all costs of such litigation, including reasonable attorney's fees.

(i) (1) Upon request by a participating state, the commission shall attempt to resolve disputes related to the compact that arise among participating states and between participating states and non-participating states.

(2) The commission shall promulgate a rule providing for both mediation and binding dispute resolution for disputes as appropriate.

(j) (1) The commission, in the reasonable exercise of its discretion, shall enforce the provisions of this compact and the commission's rules.

(2) By majority vote, the commission may initiate legal action against a participating state in default in the United States District Court for the District of Columbia or the federal district where the commission has its principal offices to enforce compliance with the provisions of the compact and its promulgated rules. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing party shall be awarded all costs of such litigation, including reasonable attorney's fees. The remedies herein shall not be the exclusive remedies of the commission. The commission may pursue any other remedies available under federal or the defaulting participating state's law.

(3) A participating state may initiate legal action against the commission in the U.S. District Court for the District of Columbia or the federal district where the commission has its principal offices to enforce compliance with the provisions of the compact and its promulgated rules. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing party shall be awarded all costs of such litigation, including reasonable attorney's fees.

(4) No individual or entity other than a participating state may enforce this compact against the commission.

Section 11. (a) The compact shall come into effect on the date on which the compact statute is enacted into law in the seventh participating state.

(1) On or after the effective date of the compact, the commission shall convene and review the enactment of each of the states that enacted the compact prior to the commission

665 convening, referred to as charter participating states, to determine if the statute enacted by each
666 such charter participating state is materially different than the model compact.

667 (a) A charter participating state whose enactment is found to be materially different from
668 the model compact shall be entitled to the default process in section 10.

669 (b) If any participating state is later found to be in default, or is terminated or withdraws
670 from the compact, the commission shall remain in existence and the compact shall remain in
671 effect even if the number of participating states is less than 7.

672 (2) Participating states enacting the compact subsequent to the charter participating states
673 shall be subject to the process in paragraph 23 of subsection (c) of section 7 to determine if their
674 enactments are materially different from the model compact and whether they qualify for
675 participation in the compact.

676 (3) All actions taken for the benefit of the commission or in furtherance of the purposes
677 of the administration of the compact prior to the effective date of the compact or the commission
678 coming into existence shall be considered to be actions of the commission unless specifically
679 repudiated by the commission.

680 (4) Any state that joins the compact subsequent to the commission's initial adoption of
681 the rules and bylaws shall be subject to the commission's rules and bylaws as they exist on the
682 date on which the compact becomes law in that state. Any rule that has been previously adopted
683 by the commission shall have the full force and effect of law on the day the compact becomes
684 law in that state.

(b) Any participating state may withdraw from this compact by enacting a statute repealing that state's enactment of the compact.

(1) A participating state's withdrawal shall not take effect until 180 days after enactment of the repealing statute.

(2) Withdrawal shall not affect the continuing requirement of the withdrawing state's licensing authority or authorities to comply with the investigative and adverse action reporting requirements of this compact prior to the effective date of withdrawal.

(3) Upon the enactment of a statute withdrawing from this compact, the state shall immediately provide notice of such withdrawal to all licensees within that state. Notwithstanding any subsequent statutory enactment to the contrary, such withdrawing state shall continue to recognize all compact privileges to practice within that state granted pursuant to this compact for a minimum of 180 days after the date of such notice of withdrawal.

(c) Nothing contained in this compact shall be construed to invalidate or prevent any licensure agreement or other cooperative arrangement between a participating state and a non-participating state that does not conflict with the provisions of this compact.

(d) This compact may be amended by the participating states. No amendment to this compact shall become effective and binding upon any participating state until it is enacted into the laws of all participating states.

Section 12. (a) This compact and the commission's rulemaking authority shall be liberally construed so as to effectuate the purposes, and the implementation and administration of the compact. Provisions of the compact expressly authorizing or requiring the promulgation of

rules shall not be construed to limit the commission's rulemaking authority solely for those purposes.

(b) The provisions of this compact shall be severable and if any phrase, clause, sentence or provision of this compact is held by a court of competent jurisdiction to be contrary to the constitution of any participating state, a state seeking participation in the compact, or of the United States, or the applicability thereof to any government, agency, person or circumstance is held to be unconstitutional by a court of competent jurisdiction, the validity of the remainder of this compact and the applicability thereof to any other government, agency, person or circumstance shall not be affected thereby.

(c) Notwithstanding subsection (b), the commission may deny a state's participation in the compact or, in accordance with the requirements of subsection (b) of section 10, terminate a participating state's participation in the compact, if it determines that a constitutional requirement of a participating state is a material departure from the compact. Otherwise, if this compact shall be held to be contrary to the constitution of any participating state, the compact shall remain in full force and effect as to the remaining participating states and in full force and effect as to the participating state affected as to all severable matters.

Section 13. (a) Nothing herein shall prevent or inhibit the enforcement of any other law of a participating state that is not inconsistent with the compact.

(b) Any laws, statutes, regulations, or other legal requirements in a participating state in conflict with the compact are superseded to the extent of the conflict.

(c) All permissible agreements between the commission and the participating states are binding in accordance with their terms.